

IN THE HIGH COURT OF JHARKHAND AT RANCHI
A.B.A. No.851 of 2020

Sujeet Kumar Mehta Petitioner

Versus

1. The State of Jharkhand

2. Chinta Devi

.... Opposite Parties

CORAM : HON'BLE MR. JUSTICE ANIL KUMAR CHOUDHARY

For the Petitioner : Mr. Mukesh Kumar Mehta, Advocate

For the State : Ms. Anuradha Sahay, A.P.P

For the O.P. No.2 : Mr. Hemant Kr. Shikarwar, Advocate

Order No.03 Dated- 17.03.2020

Apprehending his arrest in connection with Hussainabad P.S. Case No.145 of 2019 instituted under Sections 147/148/149/323/379/448/467/468/498-A/120B of the Indian Penal Code and Section 3 and 4 of the Dowry Prohibition Act, the petitioner has moved this Court for grant of privileges of anticipatory bail.

Heard the parties.

The petitioner and opposite party No.2 are present in the Court today. The opposite party No.2 submits that she is ready and willing to resume conjugal life with the petitioner but the petitioner submits that he is not ready and willing to resume conjugal life with the opposite party No.2.

Learned counsel appearing for the petitioner submits that the allegations against the petitioner are all false and general and omnibus in nature. It is lastly submitted that the petitioner is ready and willing to co-operate with the investigation of the case and undertake to pay ad interim victim compensation of Rs.50,000/- without prejudice to his defence in this case, in favour of the opposite party No.2 namely- Chinta Devi. Hence, it is submitted that the petitioner be given the privileges of anticipatory bail.

Learned A.P.P appearing for the State being assisted by the learned counsel for the opposite party No.2 oppose the prayer for anticipatory bail of the petitioner.

Considering the submissions of learned counsels and the facts and circumstances stated above, I am inclined to grant privileges of anticipatory bail to the petitioner. Accordingly, the petitioner is directed to surrender in the Court of learned S.D.J.M., Palamau at Daltonganj within four months from today and in the event of his arrest or surrendering, the petitioner will be enlarged on bail

on depositing a demand draft of Rs.50,000/- as ad interim victim compensation without prejudice to his defence in this case drawn in favour of the opposite party No.2 namely- Chinta Devi and on furnishing bail bond of Rs.25,000/- (Twenty five thousand) with two sureties of the like amount to the satisfaction of learned S.D.J.M., Palamau at Daltonganj in connection with Hussainabad P.S. Case No.145 of 2019 with the condition that he will co-operate with the investigation of the case and appear before the investigating officer as and when noticed by him and furnish his mobile number and photocopy of the Aadhar Card with an undertaking that he will not change his mobile number during the pendency of the case and subject to the conditions as laid down under Section 438(2) of the Code of Criminal Procedure.

In case the petitioner deposits the said demand draft, the court below is directed to issue notice to the opposite party No.2 namely- Chinta Devi and on her proper identification, the court below shall handover the same to her forthwith.

In case the petitioner deposits demand draft of Rs.50,000/- drawn in favour of the opposite party No.2 namely- Chinta Devi, the same shall be adjusted towards maintenance, if any or full and final settlement, if any, between the parties.

(Anil Kumar Choudhary, J.)